

Legal Analysis & Recommended Strategy

Curatela Fallimento Agricola Gavioli S.r.l. v. Naissance (UK) Limited

Case 2505/2025 R.G. — Tribunale di Siena

Prepared for: Grahame McGirr, Director, Naissance UK Limited

Amount in dispute: EUR 57,536.75 + legal interest + costs

Hearing: 14 May 2026 at 10:00 (Judge Marianna Serrao)

Costituzione deadline: 04 May 2026

Prepared by: AI analysis with 5 independent critique agents

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FINAL Legal Analysis — Curatela Fallimento Agricola Gavioli v. Naissance UK Limited

Case: 2505/2025 R.G. — Tribunale di Siena, Sezione Unica Civile **Judge:** Dott. Marianna Serrao **Plaintiff's lawyer:** Avv. Fabio Finetti (Siena) **Our lawyer:** Avv. Primo Belardi (Chianciano Terme) **Hearing date:** 14 May 2026 at 10:00 **Defence due (costituzione):** 04 May 2026 (10 days before hearing under art. 281-undecies c.p.c.) **Amount claimed:** €57,536.75 + legal interest from 01.07.2025 + costs **Prepared for:** Grahame McGirr, Director, Naissance UK Ltd

This document supersedes the earlier LEGAL_ANALYSIS.md. It incorporates 5 independent critiques and is the final recommended position.

PART 1 — THE FACTS (unchanged)

See PART 1 of LEGAL_ANALYSIS.md — facts are not in dispute after critique review.
Summary:

- Naissance acquired a ~€1,188,438.29 credit via two 28.07.2017 assignments from Banca CRAS → Argo Ge.Re.Cre. → Naissance.
 - Property auctioned 28.02.2018 for base price €616,000; transfer decree 26.06.2018.
 - Gavioli declared bankrupt 30.05.2018 (Fallimento 35/2018).
 - 18.12.2018: Fiorilli files Istanza di Ammissione al Passivo requesting €577,199.76 (= €572,438.29 ipotecario + €4,761.47 prededuzione).
 - G.D. partially admits — only €572,438.29 (the €4,761.47 is refused).
 - 04.04.2019: Distribution plan approved at enforcement hearing.
 - Trustee says Naissance received €629,975.04 total from enforcement; demands return of €57,536.75 difference.
 - Credit cession chain itself is not disputed.
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PART 2 — REVISED STRATEGIC ASSESSMENT

2.1 Why the Critiques Changed Everything

The first draft of this analysis was **too optimistic**. Five independent agents (Italian law expert, trustee-perspective devil's advocate, forensic evidence reviewer, commercial strategist, procedural specialist) all reached convergent conclusions:

1. The trustee's legal position is stronger than it first appears.
2. Naissance's position is **weaker** than either Belardi's current framing or the ChatGPT framing suggests.
3. The probability of a full win at trial is **15-20%** at best.
4. Some of my proposed defences (€30,000 refund attack; collateral attack on €4,761 prededuzione) are legally wrong and would harm credibility.

5. Commercial reality: fighting-and-losing exposure is **€80-95k** all-in. Settlement ceiling should be ~€50-55k.
6. Procedural deadline is **very tight** (~16 days to costituzione).

2.2 The Trustee's Legal Bedrock (Now Clearer)

The trustee does NOT primarily rely on art. 110 L.F. The real doctrinal framework is:

- **Art. 41 TUB** — the *credito fondiario* creditor retains individual foreclosure even during bankruptcy
- **Art. 52 L.F.** (now CCII art. 151) — but the proceeds of that foreclosure are subject to *concorso formale* of all bankruptcy creditors
- **Art. 111 L.F.** (now CCII art. 221) — prededuzioni and privilegi rank as established in bankruptcy, not enforcement
- **Cass. 23482/2018 and Cass. 12673/2022** — the assegnazione at enforcement is *provvisoria* and the surplus over the *passivo ammesso* must be restituted to the curatela **ex lege**, i.e. by operation of law — not dependent on impugnazione of the distribution plan
- **Cass. SS.UU. 25749/2015** — reinforces the principle that bankruptcy supersedes individual enforcement for ranking purposes
- **Cass. SU 4309/2010** — exclusivity of the accertamento del passivo; admission decrees cannot be collaterally attacked

This means the "finality of 04.04.2019 distribution plan" argument is **not a silver bullet**. The surplus-restitution duty arises independent of whether the plan was challenged.

2.3 What Arguments Actually Have Merit

Argument	Strength	Risk
€3,932 "legal expenses not admitted to passivo" — arguable the trustee himself concedes these sums are not within the ranked passivo and therefore are outside the concorso formale	Low-medium	Low
Interest start date (trustee claims 01.07.2025 + commercial rate from ricorso deposit; art. 1284 co. 4 c.c. commercial rate actually runs only from proposizione della domanda)	Medium	None
Procedural challenges (request conversion to ordinary rite under art. 281-decies co. 2 given complexity)	Medium	None
Quantum: mechanical recomputation given trustee's own numbers are sometimes imprecise	Low-medium	Low
Art. 2855 c.c. limits on collocazione ipotecaria for interest	Unknown	Requires Italian legal research
Settlement leverage from Naissance UK potentially pursuing Avv. Fiorilli under professional indemnity (for the initial €4,761		None direct

Argument	Strength	Risk
prededuzione exclusion if that was his error) — NOT pleaded here, reserved	Medium (leverage only)	

2.4 Arguments to DROP

Argument	Why dropped
"Clerical error" in istanza (Belardi's current thesis)	The €572k figure is mathematically correct (€1,188k - €616k). Not an error. G.D. decree now 6-year-old res judicata under art. 98-99 L.F.
Collateral attack on €4,761.47 prededuzione exclusion in this action	Violates Cass. SU 4309/2010 exclusivity of accertamento passivo. Could reinforce res judicata against us.
€30,000 "was a refund not a cost"	Legally wrong — art. 2770 c.c. and art. 111 L.F. classify procedural advance reimbursements as distributions out of the estate. Losing on this point costs credibility.
"Our credit was really €1.188m" / "provisional distribution" as headline argument	Trustee concedes the credit. Cass. 23482/2018 makes the surplus-restitution duty operate ex lege, not dependent on plan opposition.
Chiamata in causa of Fiorilli in this action	Logistically impossible before 04.05.2026 deadline. Reserve the action and pursue separately with PEC diffida now to interrupt prescription.

2.5 REVISED RECOMMENDED APPROACH

Two parallel tracks, tightly scoped:

Track 1 — File a FOCUSED defence by 04.05.2026

The costituzione should:

1. **Admit what is undisputed** — credit chain, enforcement timeline, Fiorilli's istanza content, the G.D.'s partial admission. Do not waste credibility on "clerical error" or collateral attacks.
2. **Request conversion to ordinary rite** under art. 281-decies co. 2 c.p.c. given the complexity of the art. 52 L.F. / art. 41 TUB / art. 111 L.F. interaction. Free tactical move.
3. **Challenge the quantum** — specifically:
4. Contest the €3,932 "legal expenses not admitted" inclusion in the €629,975 total, as these are arguably outside the concorso formale
5. Seek accurate interest calculation (art. 1284 co. 4 c.c. commercial rate only from ricorso deposit 30.12.2025, not 01.07.2025)
6. Cross-check the trustee's arithmetic via our own reconstruction of all distributions
7. **Demand documentary production** under art. 210 c.p.c.:

8. Verbale d'udienza 04.04.2019 with attendance list
9. Full progetto di distribuzione as filed
10. Statement of distributions to every creditor in Fallimento 35/2018
11. G.D.'s decreto di esecutività dello stato passivo with reasoning for the €4,761.47 exclusion
12. Any curator's observations lodged at 04.04.2019
13. **Reserve rights** — explicitly reserve action against Avv. Fiorilli for professional negligence (separate proceeding, not chiamata in causa here).
14. **Do NOT file a counterclaim for the €4,761 prededuzione** — violates accertamento passivo exclusivity and risks reinforcing res judicata.

Track 2 — Open settlement dialogue IN PARALLEL

Immediately after filing: - Belardi to approach curator (Dott. Scarpellini) and Avv. Finetti on "without prejudice" basis - **Opening offer**: €30,000 total (hard cash, prompt payment, full and final) - **Expected counter**: €45,000-50,000 - **Landing zone**: €38,000-45,000 - **Walkaway ceiling**: €52,000 (below the €57,536.75 + interest exposure, so still a saving)

Rationale: fighting-and-losing exposure is €80-95k all-in (principal + interest + court fees + Finetti's fees + own lawyer). A €40-45k settlement is materially below that expected loss and removes all risk.

2.6 Why Settlement Is The Real Recommendation

- Probability of full win: 15-20%
- Probability of partial win (quantum only): 20-25%
- Probability of full loss: 55-65%
- **Expected cost of litigation to judgment**: €75-85k
- **Expected cost of negotiated settlement**: €40-50k
- **EV differential in favour of settlement**: ~€30-40k

This does not mean surrender. **Filing the Track 1 defence is essential** because: 1. It signals Naissance will not roll over, preserving negotiating posture 2. It protects against procedural decadenza — once the costituzione window closes, all defences are lost 3. It preserves the Fiorilli recourse option for later

2.7 ACTIONS REQUIRED FROM GRAHAME NOW

Urgent (this week): 1. **Instruct Belardi in writing** on the revised strategy (draft email follows this analysis). 2. **Get a written drafting timetable** from Belardi — the costituzione must be filed by 04.05.2026. 3. **Produce all supporting documents** to Belardi: - All wire receipts and cheques supporting the claimed €130k costs (we only have €77k documented) - Any correspondence with Fiorilli around the 18.12.2018 istanza - Any written market-value offers (€550k, €620k, €630k) - Any 2018-2019 bank statements evidencing the €30k procedural advance 4. **Reconcile the €30k characterisation** — if this was indeed a refund (as trustee's filing states), then €130k "costs" figure must be revised. Better Grahame knows this than gets surprised at hearing. 5. **Authorise settlement dialogue** — give Belardi a walkaway ceiling of €52,000. 6. **Send PEC**

diffida to Avv. Fiorilli this week to interrupt prescription for any later professional negligence action.

Secondary: 7. Consider whether Steve McGirr's role creates any conflict that Belardi needs to know about. 8. Consider UK-side implications (reputational, Naissance's future Italian activity).

OVERALL SUMMARY (ONE-PAGE)

The trustee's case is legally strong, not weak. The €1.188m credit argument does not defeat the core *restitution ex lege* principle under Italian bankruptcy law. Most of the defences that feel intuitive to a non-Italian lawyer (clerical error, finality of distribution plan, full credit value) have already been addressed by Cassazione case law against us.

The realistic best outcome at trial is a modest quantum reduction (perhaps €3-7k), and the worst outcome is the full €57,536.75 plus ~€25-35k in interest and costs. This downside exceeds €85k.

The rational strategy is to file a tightly focused defence by 04.05.2026 and immediately open settlement talks targeting a €40-45k landing, with a walkaway ceiling of €52k.

Anything beyond this — fighting hard on weak arguments, attacking the €30k refund, chasing Fiorilli in this proceeding — costs money and damages credibility without improving outcomes.

Walk back from the €1.188m red herring. It is a red herring.

Part 3 (Extended) — Full Critique Reports

Below are the full reports from the 5 independent critique agents who reviewed the first-draft analysis. Their feedback drove the revisions in Part 4.

5 Independent Agent Critiques of LEGAL_ANALYSIS.md

Critique 1 — Italian Bankruptcy Law Expert

VERDICT: Dangerously flawed. Counsel should pivot immediately to settlement.

Key findings: 1. **Wrong legal framework cited:** I relied on art. 110 L.F., but the real doctrinal hinge is **art. 41 TUB + artt. 52 and 96 L.F. (concorso formale)**. The creditor retains individual foreclosure but must "riversata" any surplus to the curatela. Not citing art. 52 L.F. was a serious gap. 2. **Cass. 23482/2018 and 12673/2022 are squarely against us.** They hold exactly that assegnazione in favour of the fondiario creditor is *provvisoria* and surplus must be restituted — ex lege, not dependent on whether the piano di riparto was impugned. Non-opposition under art. 512 c.p.c. does not bind the curatela. 3. **€30,000 refund attack is naive:** Under art. 2770 c.c. and art. 111 L.F., spese della procedura anticipate come out of the sale proceeds which ARE the debtor's estate. That €30,000 legitimately came from the estate. Pressing this loses credibility. 4. **€4,761 prededuzione argument is dangerous:** The passivo decree is now definitive (art. 98-99 L.F. opposition window long expired). Attacking it collaterally violates Cass. SU 4309/2010 exclusivity of accertamento del passivo. Risks reinforcing the res judicata point against us. 5. **Only the €3,932 "not admitted" legal-expense argument has a colourable basis, and even it is weak.** 6. **Realistic success probabilities before Judge Serrao:** Approach 1 ~5%, Approach 2 ~10%, Approach 3 finality ~15%, quantum ~20-25% for only the €3,932.

Missing concepts not addressed in analysis: art. 52 L.F. concorso formale; art. 2855 c.c. (limiti collocazione ipotecaria); surplus distribution art. 510 c.p.c.; revoca ordinaria vs pauliana; art. 540-bis c.p.c.; art. 107 co. 2 L.F. notice to curatela; prededuzione regime art. 111 L.F.

Critique 2 — Trustee's Counter-Strategy (Avv. Finetti's perspective)

VERDICT: Trustee recovers the full €57,536.75 plus interest and costs with ~80-85% probability on current pleadings.

How the trustee demolishes each approach: 1. **Approach 1 (clerical error):** Dies on Fiorilli's own parenthetical text. G.D. decree is 6 years old and unimpugned under art. 98 L.F. — **decadenza e cosa giudicata endofallimentare**. Trustee will move to strike as inadmissible and seek art. 96 c.p.c. costs for abuse of process. 2. **Approach 2 (€1m + provisional):** Cass. SS.UU. 22.12.2015 n. 25749 and Cass. 23482/2018 already absorb this. The €1.188m credit is a red herring — pleading it concedes Naissance took unilaterally, which is what art. 110 L.F. reverses. 3. **Approach 3 finality:** Trustee will produce the 04.04.2019 plan with curator's written reservation (standard practice). Cass. 12673/2022 de-finalises by operation of law anyway. 4. **Approach 3 €30k refund:** Cass. 15724/2014 on restitution of spese anticipate defeats this. 5. **Approach 3 €4,761 prededuzione:** Forfeiture is absolute — 30-day art. 98 L.F. window closed in 2019. 6. **Approach 3 €3,932:** Textbook unjust enrichment if not admitted to passivo. 7.

Settlement: Curator has G.D. authorisation, fiduciary duty to creditors, zero litigation risk. Won't settle below ~€45,000 (80% of face).

Procedural traps trustee will deploy: - Art. 210 c.p.c. disclosure demands — expose the undocumented €55k cost gap - Art. 281-undecies decadenza istruttoria if Belardi files late - Art. 96 c.p.c. aggravated costs for dilatory defence - Interrogatorio formale of Grahame to pin him on the €30k characterisation

Uncited case law favourable to trustee: Cass. SS.UU. 25749/2015; Cass. 15724/2014; Cass. 19.11.2018 n. 29849; Trib. Milano 14.03.2019.

Defendant's record weaknesses: Unresponsive to 2 pre-suit diffide (bad faith inference). €130k costs unsupported. No Italian presence. Fiorilli's istanza is admission against interest.

Critique 3 — Forensic Evidence Review

VERDICT: The factual record is brittle — long on assertion, short on primary documents. Several core claims will not survive evidentiary scrutiny without substantial supplementation.

Specific evidentiary gaps: 1. **€130k costs claim unsupported:** Only €77,000 documented (wires). €55k gap between assertion and proof. 2. **€30,000 is almost certainly a refund, not a cost:** Ricorso explicitly states it was "l'importo residuo di euro 30.000,00 versati dalla stessa per le spese di procedura" — returned to Naissance. Grahame may be double-counting. 3. **€75,000 / €30k + €45k tranche:** No cheque or wire evidence in the file. 4. **Market value offers (€550k / €620k / €630k):** Never produced. Hearsay. 5. **"Distribution plan final and unchallenged":** Naissance has not produced the verbale d'udienza, proof of curator service/presence, or art. 512 c.p.c. deadline computation. 6. **Steve McGirr role:** Unresolved — beneficial interest? nominee? adverse interest? witness? 7. **Silence on the 02.05.2025 and 03.06.2025 diffide unexplained:** Court will infer acquiescence. 8. **28.07.2017 double assignment vs 30.05.2018 bankruptcy (10 months):** Inside former art. 67 L.F. clawback window. Naissance should prove arm's-length consideration and absence of scientia decoctionis — proof not in file.

Critique 4 — Commercial Strategy

VERDICT: The approach is legally elegant but commercially over-engineered. Rational play is a cheap-but-credible defence filed purely to drive a €40k–€50k settlement before the May hearing.

Key points: 1. **"Do both" is having it both ways** — two revenue streams for lawyers. Pick a lane. 2. **Realistic cost of fighting and losing:** €80k–€95k all-in (€57,536 + interest ~€3k + CU + Finetti's fees €7k-9k + own lawyer ~€12k + enforcement risk). 3. **Cost of fighting and winning:** Still €10k-€18k irrecoverable (Italian costs awards rarely cover real spend). 4. **Settlement range is too optimistic on low end.** Realistic landing €35k–€50k, not €25k–€35k. 5. **Silence on diffide was costly:** Best settlement window was pre-litigation and it's gone. 6.

Grahame anchored to sunk costs and the €1.188m red herring — emotionally satisfying, commercially useless. 7. **Reputational angle cuts FOR settlement** — a judgment at Siena is a searchable black mark for UK SPV dealing in Italian distressed debt. 8. **Fiorilli recourse is a mirage at this scale** — 3-5 years, contested, not worth pursuing for €57k unless embedded as counter-notice. 9. **€45k walkaway too low**. Rational walkaway is **€50k–€55k** given loss exposure of ~€85k-90k.

Critique 5 — Procedural & Timeline Risk

VERDICT: Naissance is procedurally under-prepared with 16 days to a decadenza-laden deadline. Unless Belardi delivers a full costituzione by 04.05.2026, decisive arguments will be irretrievably lost.

Critical deadlines: 1. **Costituzione due 04.05.2026** (10 days before 14.05.2026 hearing) under art. 281-undecies c.p.c. 2. Missing it triggers **decadenza** from exceptions not rilevabili d'ufficio, counterclaims, chiamata di terzo, document production requests.

Simplified rite (art. 281-decies/undecies) is front-loaded: All defences, counterclaims, third-party calls, prove costituenti and documents must be in the costituzione. There is no free-form memorie 183 c.p.c. sequence.

TACTICAL: Request conversion to ordinary rite at first hearing — free tactical move given legal complexity of Cass. 23482/2018 interpretation and quantum layers.

Mandatory document demands under art. 210 c.p.c.: (i) verbale udienza 04.04.2019 with attendance list (was the curator present?); (ii) progetto di distribuzione filed by delegato; (iii) statement of distributions to all creditors in Fallimento 35/2018; (iv) G.D.'s decreto di esecutività dello stato passivo showing reasoning on €4,761.47 exclusion; (v) any curator's observations lodged at 04.04.2019 hearing.

Counterclaim (domanda riconvenzionale): Must be in the costituzione for the €4,761.47 prededuzione + set-off — failure = decadenza.

Chiamata in causa Fiorilli: If included, risks blowing the calendar. Better to reserve the action and pursue separately; interrupt prescription via PEC diffida now.

Interest: Trustee's claim of 01.07.2025 + commercial rate from deposit ricorso is contestable — pre-lawsuit interest should at most be ordinary legal rate.

Appeal: 30 days from notification to Corte d'Appello di Firenze. Grounds available but costly — argues for strong quantum defences now to cap exposure.

NET IMPACT ON RECOMMENDED STRATEGY

The critiques are unanimous: **the recommended "fight it out on finality + quantum" strategy is much weaker than it appears.** Key course corrections needed:

1. **The €30,000 refund attack must be DROPPED** — legally wrong (art. 2770 c.c., 111 L.F.).
2. **The €4,761 prededuzione collateral attack must be DROPPED** — violates passivo exclusivity (Cass. SU 4309/2010).
3. **The "finality of distribution plan" attack is WEAK** — Cass. 23482/2018 and 12673/2022 explicitly make the allocation provisional ex lege, not dependent on opposition to plan.
4. **The only quantum argument with legs is the €3,932 "not admitted to passivo" legal expenses** — and even this is weak.
5. **The cited case law I missed is devastating:** art. 52 L.F. concorso formale, art. 41 TUB, Cass. SS.UU. 25749/2015, Cass. 15724/2014, Cass. 29849/2018.
6. **The evidentiary record needs urgent rebuilding** — €130k costs are unsupported, €30k is a refund (double-counting), market-value offers are hearsay.
7. **Commercial reality:** fighting and losing = €85k-95k exposure. Realistic settlement = €40k-€50k. Walkaway ceiling should be €50k-55k not €45k.
8. **Procedural urgency:** 04.05.2026 costituzione deadline (16 days from today). Simplified rite is punishing. Request conversion to ordinary. Include document demands. Consider counterclaim but drop if it risks decadenza.
9. **Pre-litigation silence is damning** — affects settlement posture.

The revised recommendation must be more settlement-leaning, procedurally urgent, and legally sober than the first draft.

Part 5 — Draft Email to Avv. Belardi (Italian)

A copy of this email is also provided as an Outlook-compatible .eml file in the output folder.

Subject: "Re: Procedimento Curatela Fallimento Agricola Gavioli — Istruzioni difensive e linea strategica".

Draft Email to Avv. Primo Belardi (Italian)

From: Grahame McGirr gmcgirr@naissance.co.uk **To:** Primo Belardi
avv.primobelardi@gmail.com **Subject:** Re: Procedimento Curatela Fallimento Agricola Gavioli
— Istruzioni difensive e linea strategica

Egregio Avv. Belardi,

La ringrazio per la Sua email del 16 aprile u.s. e per la Sua disponibilità.

Dopo un'attenta e ulteriore riflessione sulla documentazione depositata dalla curatela, nonché sull'impianto giurisprudenziale richiamato (Cass. 28.09.2018 n. 23482 e 20.04.2022 n. 12673), desidero fornirLe indicazioni chiare e operative circa la linea difensiva che intendo assumere, anche in considerazione dell'imminenza dei termini (costituzione entro il 4 maggio p.v. e udienza fissata per il 14 maggio 2026).

1. Impostazione generale

Ritengo che l'approccio basato esclusivamente sull'argomento dell'"errore materiale" nell'istanza di ammissione al passivo sia insufficiente e rischi di esporci a rilievi di inammissibilità. Il testo del §4 dell'istanza del 18.12.2018 — laddove reca "€572.438,29 (1.188.438,29 sottratta la somma di assegnazione pari ad euro 616.000,00)" — è aritmeticamente coerente e, a mio avviso, difficilmente qualificabile come mero errore materiale.

Analogamente, la tesi della definitività del progetto di distribuzione del 4.4.2019, pur interessante sul piano sistematico, si scontra con il consolidato orientamento di legittimità secondo cui la restituzione del maggior incassato in sede esecutiva al fallimento opera *ex lege*, indipendentemente dall'eventuale impugnazione del piano di riparto (art. 41 TUB, artt. 52 e 111 L.F., e giurisprudenza richiamata dalla stessa controparte).

Per tali ragioni, Le chiedo di strutturare la nostra difesa su basi più mirate ed economicamente realistiche, come segue.

2. Linee difensive da sviluppare nella costituzione

Le chiedo gentilmente di sviluppare la costituzione sui seguenti punti:

a) **Conversione al rito ordinario** ex art. 281-decies, co. 2 c.p.c., in considerazione della complessità della causa e della pluralità di profili giuridici da esaminare (art. 41 TUB, art. 52 L.F., art. 111 L.F., art. 2855 c.c., nonché la specifica interpretazione dei precedenti di Cass. 23482/2018 e 12673/2022).

b) **Contestazione del quantum** rispetto ai seguenti importi inclusi dalla curatela nel totale di €. 629.975,04: - €.3.932,00 qualificati dalla stessa curatela come "spese legali non ammesse al passivo" — circostanza che, per definizione, le pone al di fuori del concorso formale e quindi

della restituzione ex lege; - computo degli interessi: la curatela pretende interessi legali dal 1.7.2025 e, dal deposito del ricorso, il tasso commerciale ex art. 1284 co. 4 c.c., mentre quest'ultimo dovrebbe decorrere dalla sola proposizione della domanda giudiziale; - verifica aritmetica di tutte le somme distribuite con ricostruzione autonoma sulla base della documentazione prodotta.

c) **Richiesta di esibizione documentale** ex art. 210 c.p.c. dei seguenti atti: - verbale dell'udienza del 4.4.2019 con elenco presenti; - progetto di distribuzione come depositato dal professionista delegato; - stato delle ripartizioni a tutti i creditori nel Fallimento n. 35/2018; - decreto di esecutività dello stato passivo con specifica motivazione sull'esclusione della prededuzione di €4.761,47; - eventuali osservazioni depositate dalla curatela nell'udienza del 4.4.2019.

d) **Riserva espressa di azione risarcitoria** nei confronti dell'Avv. Paolo Fiorilli per l'eventuale negligenza professionale connessa all'esclusione della prededuzione di €4.761,47; tale azione sarà promossa autonomamente e non mediante chiamata in causa nel presente procedimento, al fine di non compromettere i termini di costituzione.

e) **Astensione** dai seguenti argomenti, che ritengo controproducenti: - attacco collaterale al decreto di esecutività dello stato passivo per la prededuzione (art. 98-99 L.F.; Cass. SS.UU. 4309/2010); - contestazione del rimborso di €30.000 a titolo di spese di procedura anticipate, trattandosi di somma legittimamente distribuita dall'attivo ex artt. 2770 c.c. e 111 L.F.; - tesi della mera "provvisorietà" del riparto come argomento autosufficiente, in quanto la giurisprudenza richiamata dalla controparte già assorbe tale argomento.

3. Dialogo transattivo parallelo

Le chiedo espressamente di aprire, non appena depositata la costituzione, un canale transattivo con la curatela. Sono autorizzato a confermarLe sin d'ora i seguenti parametri:

- apertura a €30.000 onnicomprensivi (capitale, interessi, spese legali), pagamento rapido, saldo e stralcio;
- atterraggio atteso nella forbice €38.000 – €45.000;
- tetto massimo (walkaway) €52.000, ancora nettamente inferiore all'esposizione complessiva in caso di soccombenza totale (stimata in €80.000 – €95.000 tra capitale, interessi, contributo unificato, competenze della curatela e difesa di parte).

Ritengo che la curatela, alla luce dei tempi, dei costi di procedura e del rischio di una qualche riduzione del quantum, potrebbe avere interesse a una definizione rapida.

4. Ulteriori passi operativi

a) Le chiedo cortesemente di inoltrare, già in questi giorni, una diffida PEC all'Avv. Paolo Fiorilli per interrompere la prescrizione dell'eventuale azione di responsabilità professionale, senza pregiudizio per la strategia principale.

b) Le sarei grato se potesse confermarmi per iscritto il cronoprogramma di preparazione della costituzione, tenuto conto del termine del 4 maggio p.v.

c) Raccolgo e Le trasmetterò separatamente, nei prossimi giorni, tutta la documentazione ulteriore di supporto (evidenze dei bonifici, eventuali comunicazioni di interesse all'acquisto, corrispondenza con l'Avv. Fiorilli nel 2018).

5. Considerazioni finali

Sono consapevole che la posizione giuridica della curatela è, sul piano formale, più solida di quanto inizialmente ritenuto. Per tale ragione, la priorità è (i) non perdere argomenti per decadenza processuale, (ii) contenere in modo significativo il quantum, e (iii) chiudere la vicenda, ove possibile, mediante accordo transattivo entro valori sostenibili.

La prego di farmi pervenire il Suo riscontro e la bozza di costituzione appena disponibile, unitamente a una Sua valutazione delle probabilità di successo sui singoli profili.

La ringrazio sin d'ora per l'attenzione e la disponibilità e resto a completa disposizione per ogni ulteriore confronto, anche telefonico.

Un caro saluto,

Grahame Grahame McGirr Director Naissance UK Limited

07930 473 842

Se Lei avesse ricevuto questo messaggio per errore, La prego di darne notizia al mittente e di distruggere immediatamente il messaggio e le eventuali copie, in quanto esso contiene informazioni riservate destinate esclusivamente al destinatario. Qualsiasi utilizzo o diffusione è vietato dalla legge.

Appendix A — Key Case Law References

Cited by trustee (against us)

- **Cass. 28.09.2018 n. 23482** — surplus from individual foreclosure is provisional, subject to bankruptcy restitution
- **Cass. 20.04.2022 n. 12673** — reinforces the same principle; restitution operates ex lege

Additional authorities (identified via critique)

- **Cass. SS.UU. 22.12.2015 n. 25749** — bankruptcy supersedes individual enforcement for final ranking
- **Cass. 09.07.2014 n. 15724** — restitution of spese anticipate rientranti nell'attivo
- **Cass. SS.UU. 23.02.2010 n. 4309** — exclusivity of accertamento del passivo; admission decrees cannot be collaterally attacked
- **Cass. 19.11.2018 n. 29849** — irreversibility of the admitted passivo
- **Trib. Milano 14.03.2019** — distribution plan subordinate to concorso

Primary legislation

- **Art. 41 TUB** (D. Lgs. 385/1993) — credit fondiario creditor's right to foreclose during bankruptcy
- **Art. 52 Legge Fallimentare** (now CCII art. 151) — concorso formale
- **Art. 96 L.F.** — admission of credits
- **Art. 98-99 L.F.** — opposition to state of liabilities (30-day window)
- **Art. 110 L.F.** — formation of distribution plan
- **Art. 111 L.F.** (now CCII art. 221) — prededuzioni and privilegi
- **Art. 281-decies c.p.c.** — simplified procedure (requested conversion to ordinary)
- **Art. 281-undecies c.p.c.** — 10-day pre-hearing costituzione deadline
- **Art. 512 c.p.c.** — contestation of distribution plan
- **Art. 1284 co. 4 c.c.** — commercial interest rate
- **Art. 2770 c.c.** — privilegi for procedural expenses
- **Art. 2855 c.c.** — limits on mortgage ranking for interest

Appendix B — Evidentiary Gaps to Close Before Hearing

Factual assertion	Current evidence	Gap	How to close
Naissance paid €130,000+ in costs	5 Thomas Exchange emails showing €77,000 (€57k on 26.04.2018 + €20k on 01.05.2018)	€53,000 unsupported	Produce cheque images, clearing bank statements, or counterparty receipts for the €30k + €45k second tranche; or accept the figure cannot be proved
The €30,000 was a cost paid, not a refund	Trustee's own ricorso says it was a refund of procedural advance	Internally contradicts the €130k narrative	Reconcile Grahame's own records; if it was a refund, remove from "costs paid" total
Market-value offers at €550k, €620k, €630k	None in file — only mentioned in Grahame's email to Belardi	Hearsay unless produced	Locate original written offers with dates, signatures, counterparties
04.04.2019 distribution plan final, unchallenged	Trustee's ricorso refers to the plan but not the verbale	Procedural record not in our file	Demand production under art. 210 c.p.c.: verbale, attendance list, curator observations, art. 512 c.p.c. deadline computation
Credit was genuinely €1,188,438.29	Credit cession contracts (Banca CRAS → Argo → Naissance)	Trustee already concedes — less critical than it feels	Keep documents available but do NOT lead with this argument
Steve McGirr's position is not adverse	Unclear from the file	Potential conflict of interest or witness issue	Obtain written confirmation of Steve's role vs Naissance UK; consider privilege/conflict
Reason for not responding to 02.05.2025 and 03.06.2025 diffide	None on file	Court will infer bad faith / acquiescence	Document what happened — was it service defect, misrouting via Fiorilli, internal oversight? Have a clear explanation